

# CHAMBERS'S JOURNAL

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No. 34.—Vol. I.

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But the chief question is not so much the number of eggs produced, as the number of birds which are hatched and the percentage of these that become food for powder. The grouse has a hundred enemies lying in wait to do mischief—to destroy the nests, suck the eggs, or kill the tender brood; nor are the parents spared, when the enemy is their superior in strength and cunning. Let all who have the chance walk

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But notwithstanding all the care which the parent birds are able to bestow on their young ones, the percentage of mortality, as in the case of other wild animals, is always considerable. In the first place, there are 'the elements' to do battle with. A stormy spring-time will delay pairing; the birds are late ere they begin their work of egg-laying, and deluges of rain will wash the eggs out of the nests or drown the tender nestlings. Nevertheless, there is still a head of game left for the sportsman; and after the moors have been industriously trodden for a few weeks, there may yet remain a stock of birds sufficiently numerous to insure an ample supply for the sportsmen of the future.

The exact number of moorfowl that a given acreage of moor will feed and breed cannot be stated except by way of an estimate. Some shootings are

much better stocked than others of similar size, probably because the breeding accommodation is good and the food more plentiful. To insure good sport on the Twelfth and subsequently, much requires to be done to a moor. It must be traversed by keepers, whose duty it is to trap and otherwise destroy the 'vermin;' patches of old heather must be burned to insure the growth of young shoots, upon which grouse delight to feed; and poachers and other trespassers must be dealt with. In some places where the heather is well cared for and systematically burned, and where the vermin are looked after, the return will be much more liberal than on moors that have been left to themselves, though, strangely enough, in some districts, one of several contiguous moors will often produce a greater percentage of birds than can be obtained on any of the others. Big bags quickly filled are the order of the opening day, and instances of modern sport will bear us out when we say that two guns have been known to kill two hundred and eighty single birds on the first or second day of the season; and we have known a small party to have shot in the course of ten days as many as nine hundred and fifty-two brace. On some of the English grouse moors, still larger bags are occasionally recorded. On the Wemergill moor, belonging to Sir Frederick A. Millbank, there were shot in four days in 1882 by seven guns on the first two days, and by four guns on the next two, four thousand eight hundred and thirty-three grouse. Some twenty years ago, a good sportsman was well contented with his sixteen or twenty brace of birds; but we shoot faster and closer nowadays.

All who have had occasion to take a moor for themselves or friends, know that the pastime of grouse-shooting is yearly becoming more and more expensive. 'The heather is cheap enough,' we are sometimes told; 'it ranges from about sevenpence to eighteenpence an acre;' and that certainly does not appear to be an expensive matter; but the extras mount up to a tidy sum before the season closes. No good shooting with a comfortable residence upon it can be obtained much under two hundred and fifty pounds for the season; but that sum, with travelling expenses hither and thither of family and servants, the payment of keepers and gillies, the entertainment of guests, and other items of expenditure, becomes largely augmented. There are always, of course, shootings in the market at the most varied prices, from a share of a moor at perhaps twenty-five pounds, to a stretch of heather with palatial residence, and perhaps salmon-fishing, that costs a thousand pounds and upwards. Various terms are occasionally exacted

besides the payment of a given sum by way of rent—the number of birds to be shot is specified, and the period of occupation strictly laid down in the articles of lease. There are, however, moors which are let on a pretty long lease for good rentals, where the tenant is, as it may be, put on honour, and shoots as few or as many birds as he pleases, it being understood, that when he quits the ground, he shall leave upon the heather as good a breeding stock as he found.

Yearly, or, as they may rather be called, season tenants, have often proved somewhat unscrupulous as to this factor of grouse-moor economy, and have been known to shoot every bird that could be found. It is because of such dishonourable conduct that landlords or factors have been compelled to lay down stringent conditions as to the number of birds that shall be slain during the shooting season. There are persons who make it their business to rent a moor in order that they may completely despoil the heather of its feathered treasures. In some instances of this kind of dealing, a large stretch of moorland has been depopulated in the course of a few days, the lessee being assisted in his deadly work by a band of confederates, and the grouse hurried into the market—this being of course the intention of all concerned from the beginning. It is the next tenant of that shooting who suffers. Both laird and factor being very likely ignorant of what has occurred, the ground is again let for the season; and the tenant—who probably had omitted the precaution of previously visiting the moor to satisfy himself as to the chances of coming sport—finding that birds are exceedingly scarce, is naturally very much annoyed. In consequence of such fraudulent practices, sportsmen rarely take a moor without some guarantee of the quantum of sport they are likely to obtain; while on the other hand lairds are yearly becoming more particular as to the character of offering tenants.

The expenses of a shooting are nowadays so great, that it is the custom for nearly all who take a moor to send a considerable number of their birds to market. In the days of our grandfathers, it would have been thought mean to sell one's grouse, most of the birds which then were shot being distributed as presents. But in those days, shooting was truly a 'sport,' and was leisurely gone about, with the result that, in a comparative sense, not more perhaps than a third of the number now killed were shot. It must, however, be borne in mind that at the period indicated, say fifty years ago, breech-loaders had not been invented; the same facilities for reaching distant

markets were not in existence; the modes of steam transport, now so well developed, were only in their infancy; and the rents of moors were not, speaking roundly, more than a fourth of what they are to-day. Ten or twelve thousand acres of productive heather might have been leased in the days of our grandfathers for little more than a hundred pounds a year, and probably not above seventy or eighty, or at most a hundred brace of birds would be shot upon it—no more being needed, the London and other grouse markets not being then in existence, at anyrate not in the active way that we find them to-day. Seeing that fifty years ago there was even a greater expanse of heather than there is now, it is curious to note the increased abundance of game, though the apparent increase may partly be accounted for by the modern methods of suppressing moorland ‘vermin.’ Formerly, hawks, carrion crows, stoats, and other grouse-foes, roamed the moors comparatively unmolested, and doubtless committed great havoc. Nowadays, gun and trap destroy those creatures, and secure a larger head of game to the sportsman. That being so, grouse are sent in large quantities to market in order to be sold, much to the benefit of the general public.

Grouse commerce is of varied incidence. There are persons, for instance, who before the shooting season begins will contract with the lessees of moors to receive all the birds they can shoot, at a fixed price per brace. These contractors take their chance of making a profit by sending the grouse they receive to London, Liverpool, Manchester, &c., to be sold for what they will bring. It depends on the season how they fare. If the supply is large, the price falls, and little profit may in consequence be realised. On the other hand, if the supply is less than the demand, then prices rise and profits are insured. Some lessees consign their birds to a dealer, and agree to take the market price—a commission being allowed on sales. The prices vary according to the quality and plumpness of the birds. Thus, we have seen a large number of the return lists from big salesmen in London and Manchester, in which the prices range from 7s. 6d. and 6s. 9d. for single birds, down to 1s. 3d. The following salesman’s note speaks for itself: ten at 7s. 6d.; twenty at 6s. 6d.; thirty at 5s. 9d.; forty-nine at 4s. 6d.; twenty at 3s. 9d.; twenty at 2s.; twelve at 1s. 6d.—total, one hundred and sixty-one, all priced, be it noted, as single birds. These will have been sent in hampers, and will most likely be disposed of by auction by the salesmen to the West-end poultrymen and game-dealers of London; who in turn will fix the price of the finest of the birds at probably a guinea a brace. The returns for sales

are very varied; at times the market is so glutted with grouse, that none of them will bring more, perhaps, than two shillings or half-a-crown. Such loads of grouse in plentiful seasons now reach our populous towns and great cities by the 13th and 14th of August, that this delicious game may be bought at quite a moderate figure.

As a matter of fact, the great bulk of the birds which are annually killed reach the markets before the close of the month named; and we regret to say that despite of every care being exercised, poached birds are still plentiful—so plentiful that they hurt the market. The ingenuity of the poachers is notorious; they will sweep a moor a few days before ‘the Twelfth,’ and then manage to place the spoil in the hands of such dealers as will purchase, in spite of all the watchfulness of the authorities. This pernicious system often accounts for grouse being exposed for sale on the *morning* of the Twelfth.

The amount of money which is annually expended in grouse-shooting and deer-stalking cannot be less than from one to two millions sterling. The sporting rental of Scotland has been estimated to be not less than half a million per annum; and the amount of money paid for living, and for the wages of servants, entertainment of guests, as well as what is expended in travel, must be at least four times the sum named. It has been said that Sir Walter Scott *made* Scotland, in the sense of conferring upon it that celebrity which caused it to become a profitable show. Not only did he describe its scenery of cloud-capt mountain and placid lake, but he made classic its sports and pastimes, and sent thousands from all parts of the world to stalk its deer, kill its salmon, and shoot its moorfowl.

## BY MEAD AND STREAM.

### CHAPTER XLIII.—OTHER PEOPLE'S MONEY.

AT an early hour Wrentham was with him again, as smartly dressed and hat as glossy as if he had been on his way to a garden-party, or Ascot, which was the more probable expedition for him to be intent on. Whatever he thought of Philip's haggard looks and ruffled dress, which indicated that he had been up all night, he affected not to perceive these signs of a mind perturbed.

'Any letter this morning?' he inquired after a cheerful greeting.

'No letter from Mr Shield,' answered Philip, comprehending the real meaning of the question.

'Droll,' muttered Wrentham, for an instant allowing his disappointment to appear. 'Should have thought he would not have failed to write last night, knowing what a corner you are in. Never mind. I daresay he means to send the answer by messenger, and he can't back out of giving you a lift, seeing that he is pledged to do so.'

'He may be annoyed—he has reason enough to be so—and may refuse. What then?'

Wrentham shrugged his shoulders and smiled complacently.

'Why, then, my dear old man, you must go in for the whitewash.'

'The what?'

'The whitewash. Go through the Court—the Bankruptcy Court.... Oh, you need not look so glum over it, for it is quite the pleasantest way of getting out of a difficulty, and every sensible man does it. I've been through the Court twice myself, and only want to go through it a third time in order to be certain of success. I assure you the Court of Bankruptcy is the gateway to fortune. Look at'——

He ran over a long list of notable commercial men who had undergone 'the whitewash,' as he termed it, in his flippant way, who had never done any good until they underwent the ordeal, and who were now wealthy and respected. He spoke of them with genuine admiration, and concluded with the declaration of his ambition to go through the Court once again: then, success was certain.

Philip stared at him. Surely the man would not dare to jest at such a time as this; and yet the species of consolation he offered him was very like a cruel jest. But it was impossible to look at Wrentham's cheerful confident countenance and doubt his sincerity.

'If the object I had in view had been different from what it is,' Philip said coldly, 'and if the money had been my own, probably I should not have felt the loss as I do.'

'That's just where I don't understand you. The beauty of it to me is that the money was not your own—if it had been, I should have sung another tune. But it's nonsense to think that anybody can be desperately upset when they are only losing other people's money.'

Philip turned wearily to the window: it was a hopeless endeavour to get this man to understand his sentiments on this subject.

'Come, come; cheer up, old man—things never turn out so bad as they look. I know Shield has plenty, and he'll stump up. If he doesn't, why, there's the Court open to you, and you can start again fresher than ever.'

'We need not talk further on the subject at present,' said Philip, turning round. 'I shall wait till eleven o'clock, and if there is no message by that time, I go to Willowmere. Should I not call at the office on my way back, come here in the afternoon and let me know what is doing.'

'All right. I am glad you are going to see Miss Heathcote. I believe she can give us some useful information—if she chooses.'

The mixture of good-nature and selfishness as displayed in Wrentham was at that time most painful to Philip. He felt as if his noble purpose had been dragged down to the level of a swindle; and if he had been a conscience-stricken swindler, he could not have endured sharper stings than his morbidly exaggerated sense of failure thrust into him.

Eleven o'clock struck, and still no message had come from Mr Shield.

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After breathing the close atmosphere of Wrentham's unscrupulous counsels, it was a relief to be out in the meadows again, although they were covered with snow: the crisp tinkle of the river in the frosty air was delightful music to his weary ears; and the trees, with their skeleton arms decked and tipped with delicate white glistening in the sunlight, refreshed his eyes.

'Eh, lad, what is't that has come to thee?' was the greeting of Dame Crawshay. 'Art poorly?'

'Ay, poor enough; for I am afraid I have lost everything.'

'Nay, nay, Philip; that cannot be—thou hast not had time for it,' she said in distress and wonderment as they went into the oak parlour.

'Time enough to prove my incapacity for business,' he answered bitterly; 'and my grand scheme will burst like a soap-bubble, unless Mr Shield comes to the rescue.'

'And never doubt he will,' she said earnestly, her own mind troubled at the moment by the knowledge of Mr Shield's intentions, which she could not communicate. The sight of Philip's face convinced her that the ordeal was too severe.

'I sent to him yesterday afternoon asking help, and he has given no answer yet.'

'But he will do it. Take heart and trust him. But there must be something wrong about this, Philip—that such a fortune should slip through thy fingers so quickly.'

'Yes, there is something wrong; and I am trying to find out what it is, and where it is. I *will* find it out before long. But I am anxious to get back to town, and I want to see Madge for a few minutes. That was what brought me out.'

'There's a pity now! She's gone to London all in a hurry after the post came in. I thought she was going to see thee.'

‘I sent no letter last night,’ said Philip, chilled with chagrin and disappointment. ‘Did she say that she was going to see me?’

‘Yes, and with good news; but if she finds thee looking as glum as thou art now, she’ll be frightened;’ and the dame tried to smile. Her soft kindly voice soothed him, although her words conveyed little comfort.

‘Where is Uncle Dick?’ he inquired after a brief pause.

‘He is away to the inspector about the cattle he is sending to Smithfield. I do hope he’ll get a prize; he has so set his heart on it.’

At any other time, Philip would have cordially sympathised with that good wish: at present, he scarcely noticed it.

‘I shall not see him to-day, then.... What time did Madge go?’

‘By the nine o’clock train. Stay and have a bite of something, lad. I do not believe thou hast been eating properly, or thou’dst be better able to bear this pother. It will be ready in ten minutes.’

‘Not now, Aunt Hessy, thank you,’ was his reply to her sensible proposal. ‘There is the more need for me to hurry back, since Madge is to call for me. I cannot make out how she did not reach my place before I started.—Good-bye.’

The dame had been watching him anxiously all the time; and now she laid her hand with motherly tenderness on his arm.

‘Thou art poorly, Philip: come back here to-night.’

‘I cannot promise that; but I will come as soon as possible.... Do you think it likely that Madge might have gone to see Mr Beecham?’ he asked abruptly.

‘What would she do that for?’ said Aunt Hessy with some surprise.

‘I don’t know—but it seems, they have struck up a great friendship.’ He spoke with affected carelessness, his eye scanning the floor.

‘Then I must tell thee, she has gone to Mr Shield, and will bring thee good news. Thou must learn the rest from herself. It would not be fair for me to take the pleasure from her.’

What had she gone to Mr Shield for? and what good news was she to bring him? Had she suspected or discovered that he was on the brink of ruin, and gone to plead for assistance? That would be a sting indeed. Hard as it might be for him to do it himself, it was unbearable to think that she should be brought to such a pass. This idea presented itself to him in all sorts of shapes, as he hurried back to Dunthorpe station, and it by no means tended to allay his agitation.

He drove straight from Liverpool Street to his chambers. They had been left in charge of one of the office lads, sent from Golden Alley for the purpose. This smart youth informed him that no one had called and no message had arrived during his absence.

He dismissed the lad and, with a dogged determination to master his nervous excitement, attacked the account-books and vouchers once more. His head was painfully clear now, and he was surprised at the sudden development of a hitherto unsuspected capacity for figures. He threaded the mazes of those long columns with what was for him singular rapidity and accuracy. He was rewarded by finding everything perfectly correct: the balance, although largely against him, was strictly in accordance with the items entered; and for every item, there was the voucher beside him.

He only paused when the fading light compelled him to rise and light the lamp. There was no mistake about it: the money had been spent in accordance with his directions, and there was no present return, nor any probability of a return in the future. A black lookout, truly; and he began to wonder gloomily whether it would not be best to undergo that whitewashing process of which Wrentham spoke so admiringly. By that means he would at anyrate save himself from the pain of losing more money which did not belong to him.

He passed his hand slowly over his head and stared vacantly, like one dazed by some mental vision of horror. Had he then lost faith in the work he had undertaken? Was he to bow down and own that he had blundered egregiously in imagining that there were men—and women too—willing to work and capable of seeing the advantages of being paid for what they produced—paid for quality as well as quantity—rather than by a fixed wage for so much time spent on the premises of the employer? No; he had not blundered: the system was in a minor degree already in vogue in various

trades, and there was no reason why it should not be developed to its full extent, so that the workman should find that his labour was tangible capital, which would increase as it improved in quality and productiveness.

His eye fell on the open account-books on his table. What a cruel commentary on his brave speculations. He had tried to realise them—tried under the most favourable circumstances of time and money. The people were in a ferment of discontent with their condition, ready, apparently, to enter upon any scheme which promised to improve it; and the capital he had invested in his scheme for their benefit was considerable. And he had failed!

Again the dogged look came into his face. The failure was not due to the men or to the scheme: the fault lay in himself. He had mismanaged somehow; and he had not yet found out how.

He was roused from his reverie by a sharp knock at the door. It was Wrentham, who entered briskly and with the air of one who has important intelligence to communicate. His manner was not precisely excited; but it was flustered, as if he had been running a race and was a little out of breath. 'No message yet, old man, I suppose?'

'None,' replied Philip, and his tone was not indicative of a pleasant humour. 'Has anything happened—since I saw you?'

'Yes, something has happened,' was the answer.

Wrentham cooled suddenly when he observed how Philip had been occupied. 'Have you seen Miss Heathcote?'

Philip had a repugnance to the sound of Madge's name on this man's lips, and yet it was pronounced respectfully enough.

'I have not seen her yet.—But look here, Wrentham; I wish you would do without referring to Miss Heathcote so frequently. I do not like to have her name mixed up in the mess of my affairs.'

'I beg your pardon, my dear Philip, if I have touched the very least of your corns. 'Pon my honour, it was accidental, and I am sorry for it.'

'All right, all right.'

‘Well, but I must ask you to pardon me once again, for I am compelled to refer to the lady, and I hope to do so as a gentleman should in speaking to his friend of the fair one who is to be that friend’s wife. Will you grant me leave?’

‘What is it?’ was the irritable query.

‘I mentioned to you that I imagined Miss Heathcote could throw some light on the proceedings of Mr Beecham and Mr Shield. Now I know she can.’

‘You say that as if you thought she would not. How do you know that she knows anything about their business?’

‘Don’t get into a temper with me—there’s a good fellow. Although I could not enter into your plan with the enthusiasm you and I would have liked, I am anxious—as anxious as yourself—to see you out of this scrape.’ (He had good reasons of his own to be anxious; for there was a certain strip of blue paper in the hands of Philip’s bankers which it was imperative that Wrentham should get possession of; and that he could not do unless a round sum was paid in to Philip’s account during the week.)

‘Don’t mind my ill-humour just now,’ muttered Philip apologetically, in answer to his manager’s appeal.

‘Certainly not,’ Wrentham went on, instantly restored to his usual ease. ‘Well, I could not rest in the office to-day, and having put everything square until to-morrow, I went up to Clarges Street.’

‘To call on Mr Shield again?’

‘No; but to examine apartments in the house opposite to the one in which he is staying. Whilst I was engaged in that way, I looked across the road and saw, in the room opposite, Beecham, Shield, and Miss Heathcote together.’

‘Well, you guessed that Beecham was a friend of my uncle’s, and as she started this morning to visit Mr Shield, there was nothing extraordinary in seeing them together.’

‘Oh, you were aware of that! No; nothing extraordinary at all in seeing them together; but it confirms my surmise that Miss Heathcote can give us—you, I mean—information which may be useful.’

They were interrupted by a gentle knock at the door, and when Philip opened it, Madge entered.

# SANITARY INSPECTION OF THE PORT OF LONDON.

WE move easily in the little beaten track of our own concerns, and do not think of the care that is taken of us. What snug citizen of us all ever imagines danger to himself and the community from such a source as the port of London? Nevertheless, if the matter be given a moment's consideration, it must be allowed that danger threatens there of a very real kind. Our great port swarms all the year round with vessels of every nationality. They come with human and other freight from this country and that, from ports maybe in which disease of one sort or another was rife when they sailed; they carry the germs of many a deadly malady in cabin or in hold; disease often ripens on the voyage amongst passengers or crew, and is carried right up to the port itself; and the vessels, on their arrival here, lie a day, a week, a month in our docks. What, if any, precautions are taken, and by whom, to prevent the diseases that are thus borne so near to us, from spreading through the port, and from the port through the wide area of London itself? The thing is worth looking into for a moment. <sup>[1]</sup>

There is no better known craft in all the Port of London than the *Hygeia*. She is the little steam-launch used by the medical officer of the port when, accompanied by his inspector, he goes up and down the river on his sanitary rounds. The inspector inspects, and the medical officer receives the report and gives instructions. Through the kindness of the medical officer (Dr Collingridge), I was enabled, a few days ago, to accompany him on board his fast-going and comely little craft. The purpose I had in going will be better understood if I explain first what are the functions of the port medical officer. He acts under the corporation of London, who for ten years or more have been the sanitary authority for this vast and teeming port. The custom-house has sanitary powers of a kind, but they are little better than nominal. The duty of discovering an infected ship rests upon them, but having done that, their responsibility is almost at an end. For example, every vessel arriving at the port of London from a foreign port is bound, on reaching the quarantine ground at Gravesend, to signal, for the information of the

boarding officer. This officer at once visits the vessel, and interrogates the master as to the health of the crew and passengers. If all questions be answered in a satisfactory manner, the vessel is allowed 'free pratique,' and the quarantine certificate is issued, without which no vessel is allowed to report. If there has been any sickness of an infectious or contagious character, the vessel is examined by the Customs medical officer, who, if he find infectious cases on board, communicates with the medical officer of the ship-hospital at Greenwich. But the arrangements in force at this moment for preventing the importation of disease into the port of London are exceedingly defective, insomuch as—unless the disease be cholera, plague, or yellow fever—there exists no power by which an infected vessel can be detained at the entrance to the port. Unless, therefore, the hospital officer—who acts in concert with the port medical officer—arrive immediately, a vessel containing infectious disease is allowed to pass up the river with her cases on board, and it is not until her arrival in dock that the patients are able to be removed by the medical officer of the port. But this weak point in the system is now in train to be wholly remedied, for the corporation have within the last few weeks framed a regulation by which no vessel with any contagious or infectious disease on board will be allowed to pass into port until the cases have been removed and the vessel thoroughly cleansed and fumigated.

A notion may be gathered from the foregoing of the functions of the port medical officer. He derives his authority from the Port of London Sanitary Committee of the corporation, a main part of whose business it is to prevent the importation of epidemics into London by means of the vessels which arrive daily in the port from all quarters of the globe. It is hardly necessary to expatiate on the extreme importance of their functions; but let me endeavour to show these by one or two picked examples, and then—for the *Hygeia* has her steam up, and the fog is rising rapidly—we shall be off on our tour of inspection. In the latter part of the summer of 1882, a very serious epidemic of smallpox occurred at the Cape of Good Hope. What has smallpox in South Africa to do with us in London? A good deal, considering that the shipping which arrives here from that colony is enormous. The disease spread, the death-rate rose, and our port medical officer was very properly alarmed. He at once set to work to take all due precautions, and by his orders, rigid note was had of every vessel arriving from the Cape. Beyond this, a circular letter was addressed to the principal Companies and

shipowners engaged in that trade, calling attention to the disease, and asking for immediate notice in the event of its breaking out on board any vessel. It turned out that very few vessels carried the disease; but, thanks to the precautionary measures that had been taken, such cases as did arrive in the port were promptly discovered and dealt with. At another time Boulogne was attacked by the same disease, and as this is a port within nine or ten hours' voyage of London, and steamers arrive almost daily, the matter was of great importance to the port sanitary authorities of London. The medical officer himself visited Boulogne, to inquire into the causes and extent of the disease; and in the port an inspector was told off to examine each vessel on its arrival; while the General Steam Navigation Company were advised to order the revaccination of all officers and crews on vessels running to Boulogne. The recent outbreak of cholera in Egypt occasioned no small anxiety to the Port Sanitary Committee, and it was owing in part no doubt to the vigilance of the medical officer and his assistants that not a single case of the malady appeared in this port. To the crew of every infected ship, or of any ship arriving from an infected port, the medical officer offers vaccination free of cost. These are some amongst the precautions that are taken to protect the citizens of London against the importation of infectious diseases from foreign ports. Not a vessel that enters the port of London, great or small, or of any nationality, escapes inspection. There are two inspectors for the river, one of whom, in the *Hygeia*, and the other in a rowing-boat, goes through and through the port every day of the week; and two for the docks, the whole of which—miles in extent—undergo a careful daily inspection. I forget how many thousands of vessels the medical officer told me were overhauled in this way in the course of a year—British, American, French, German, Dutch, Danish, Austrian, Russian, Italian, Spanish, Portuguese, Greek, Swedish, and Norwegian. Cases of infection are received at present on the hospital-ship at Greenwich; but a land-hospital has just been opened there, an improvement on the floating establishment for which the medical officer has long been anxiously waiting. A ship-hospital, he says, is useful enough for one class of infectious disease; but he holds that it is impossible effectually to isolate more than one class in the same vessel; and in addition to this grave disadvantage, there is the danger to the vessel herself, an illustration of which was afforded one rough night lately, when the hospital-ship *Rhin* broke from her moorings and went pitching down the river.

But let us see how the work of inspection is done. We are aboard our pretty little launch, which has been steaming impatiently this half-hour past. The master is at the wheel, the 'boy' is lively with the ropes, and the inspector has his note-book ready. The medical officer descends to the cosy little cabin; and when he has changed his silk hat for the regulation blue cloth cap, and bestowed his umbrella where no nautical eye may see it, he produces a cigar-case, and observes casually, that should stress of weather confine us below, the locker is not wholly destitute of comforts. That all may know what we are and what our business is, we fly in the bows, or the stern—I speak as a landsman—a small blue flag, whereon is inscribed in white letters, 'Port Medical Officer.'

We are not going to make the tour of the whole port, which at our necessarily moderate rate of speed—though the *Hygeia* can do her twelve knots an hour and race any craft on the river—would be something like a day's voyage; for the area over which the Port Sanitary Committee has control is a wide one, embracing the whole river from Teddington Lock to Gravesend, and from below Gravesend to Trinity High Water. We are to run through the region known as the Pool, which, commencing below London Bridge, ends somewhere about the West India Docks. It is now half-past ten o'clock, and the river is all astir with its own picturesque and varied life. The rising breeze has scattered the mist, and fretted the surface of the water, which dances around us in a thousand crested wavelets. The sun has struggled through a mass of slate-coloured clouds, and plays over the wonderful towers and steeples of the City churches, and lights up the gray old wharfs along the river, and pierces the deep holds of vessels discharging their cargoes.

In making his ordinary round, the inspector works steadily up or down the river, going from vessel to vessel, until all have been examined. But as I am anxious not only to see the routine of inspection, but to get some notion besides of the variety of the craft lying in the Pool, the medical officer kindly proposes to make a selection of typical vessels. Steering out of the course of a fine Thames barge, just bearing down on us with all sail set, and fit as she moves to be transferred to the vivid canvas of Miss Clara Montalba, we stop alongside a Dutch eel-boat. The inspector has already intimated that the work of inspection here will be little more than a form. He never has any trouble with the Dutch eel-boats, for the crew appear to

spend the major part of their existence in scrubbing, scouring, and polishing their neat little craft. The skipper salutes us in very passable English, and invites us aboard. We go from stem to stern, above and below; and I confess my inability to discover a single speck of dirt. These are trim and sturdy little boats, strongly and even handsomely built, and able to stand a good deal of weather. With a fair wind they make the passage in one or two days, but are sometimes delayed a fortnight or three weeks between Holland and the Thames. We steer next for one of the General Steam Navigation Company's continental steamships, with the blue boats hanging in the davits. Here the inspector discovers a small sanitary defect in the neighbourhood of the forecastle, and a promise is given that it shall be remedied without delay. I am much struck by the genial and kindly style of the inspector. He has the *suaviter in modo* in perfection. It is never 'Do this' or 'Look to that,' but, 'If I were you now, I think I'd,' &c.; which goes far to account for the evident good feeling with which he is everywhere received. He can afford, however, to go about his business in a courteous spirit, for he rests upon the strong arm of the law. We board next a Thames sailing-barge. These vessels carry a miscellaneous cargo of grain, bricks, manure, cement, &c., from below London Bridge up the Medway. They are for the most part handsome and well-kept ships. There is no prettier sight on the river than a fleet of Thames barges sailing into port on a sunny summer's day, laden high with hay or straw. The inspector puts the usual questions; 'How many have you aboard? How's the health of the crew?' and so on; and then we take a look round. Both the medical officer and the inspector have a keen eye to the water-casks, and to the cabin where the crew have their bunks or hammocks. The mate has the pick of the berths; the men come next; and the 'boy' takes his chance in a hole, where, if he be pretty well fagged out by the time he turns in, he may not impossibly manage to get his forty winks. In the matter of crew, by the way, these Thames barges are generally short-handed, and a bad time they have of it in dirty weather, when all hands are needed for the sails, and the helm and everything else has to be abandoned. It is small wonder that so many of them are lost.

Our next visit is to one of the splendid Dundee passenger boats. No chance of fault-finding here, where everything is spick-and-span throughout. These are very fast boats, and their fittings are fine enough for a yacht. The chairs in the saloon are velvet, the fireplace a picture in itself, and the pantry glistens with silver-plate. As we go down below, the captain suggests

refreshments; but the medical officer, fully alive to the force of example, makes a modest reply to the effect that the day is not yet far spent. We board then a Guernsey sailing-boat, discharging a cargo of granite. The mate is nursing a wounded hand, crushed the day before in attending to a crank; and the medical officer tenders a bit of professional advice, for which he receives no fee. The crew's quarters in the fore-castle have a decidedly close smell, and the inspector thinks that a little lime-washing would not be amiss. We go on to visit a 'monkey'-barge, the craft which sails the unromantic waters of the canal. Cleanliness abounds here—the master, in fact, is polishing his candlestick when we arrive; but he receives a reprimand from the inspector for not having his papers on board. In this way the work of inspection is performed. It is lightly and easily done, to such perfection has the system been brought; and thanks to the extreme care with which it has been carried out for years past, and to the readiness with which masters and owners have complied with the instructions of the medical officer, it is now often in nine cases out of ten almost entirely formal. To see the really big vessels, we must go farther down the river; but we have learned something in the Pool as to the manner in which the sanitary work is conducted amongst the craft of every description.

We are now at the Shadwell entrance to the London Docks. Limehouse is on one side of us, and Rotherhithe on the other. It is a charming bit of the river, for those with an eye for quaint water-side scenery, as one of Mr Whistler's early canvases abundantly testifies. The gray steeple of Limehouse church is to the left; nearer to hand, the red house of the harbour-master stands out brightly; ancient weather-smitten wharfs are on either side; queer old tenements with projecting stories, and coloured white, brown, and black, elbow one another almost into the water; and behind us rise the countless masts and delicate rigging of the vessels lying in the dock. The sun has gained full power now, and burnishes the restless surface of the river as I take leave of my courteous friends.

# VERMUDYN'S FATE.

## A TALE OF HALLOWEEN.

### IN TWO CHAPTERS.—CHAPTER I.

A LITTLE knot of miners were gathered round the fire in Pat Murphy's drinking-saloon, situated in that delightful locality known to diggers as Rattlesnake Gulch. They were listening eagerly to the details of a story related by Gentleman Jack, a member of their fraternity who had recently visited San Francisco. He had gone there with the twofold object of having what was facetiously termed a 'fling,' just to relieve the monotony of existence, and also with the intention of exchanging the gold he had accumulated during the past six months for notes and coin. He had likewise in some mysterious way contrived to get rid of the burden of his wealth, and now returned almost penniless to the bosom of his friends; but this fact in nowise diminished the cheerfulness with which the wanderer greeted his mates, or disturbed the equanimity with which he recounted his adventures since their last meeting. He had just ended his narration with the account of a curious discovery of which he had heard the details that morning on his way back to the Gulch.

'A mighty queer story, anyhow,' observed Pat, *alias* 'Flash' Murphy, as he emptied his glass.

'Mighty queer!' repeated the chorus, following suit.

'Spin out that yarn again, mate!' demanded a gentleman who rejoiced in the sobriquet of Old Grizzly. This personage had only entered the 'bar' in time to catch the concluding words of the narrative. 'Let's have it, Jack!' he repeated impatiently.

Thus invited or encouraged, the young man rejoined carelessly: 'It was nothing much, only the finding of a man—all that was left of him at least—in a place they call the Devil's Panniken, when they were blasting the rock for the new railroad between Sandy Bar and 'Frisco'——

‘I know the place—travelled that road years afore they ever thought of running cars through it,’ interposed Old Grizzly. ‘But what about the man?’

‘Well, that’s the queer part of the story; not that they found a man, but that they should have found him where they did, and with so much gold on him too,’ answered Gentleman Jack with his slow languid drawl.

‘Say!’ ejaculated Old Grizzly, who was listening with a curiously eager excited face to the indifferent, careless utterances of the younger man. ‘Cut it short, mate, and tell us how they found him.’

‘Well, they were blasting a big rock, and as it broke, it disclosed a cave right in the heart of the limestone; but there must once have been an entrance to it, for the skeleton of a man lay there. All his clothes had fallen to dust; but there was a ring on one finger, and about seventeen ounces of gold lay in a little heap under him. It had evidently been in his pockets once; but the bag that held it, and the skeleton’s clothing, were alike a heap of dry light dust. There was nothing to identify him, nothing to show how long he had been there. The very ring he wore was of such a queer outlandish fashion that the fellows who found him could make nothing of it.’

‘Was that all?’ demanded the elder man.

‘All that I can recollect.—Stay! I think he had a rusty knife somewhere near him, but nothing more. It’s a queer story altogether. How he got there, if he died in the cave, and by what means it was afterwards closed up—these are all mysteries.’

Old Grizzly smoked in silence for some time; and the miners had resumed the usual occupations of their idle hours, drinking, smoking, playing poker, and quarrelling, which amiable amusements had been momentarily suspended in order to welcome the return of the ‘Wanderer’ with due *empressement*, when suddenly the deep voice of Old Grizzly was heard above the babel of tongues, saying: ‘This story of Jack’s about the Devil’s Panniken and the man they found there puts me in mind of what befell me and a mate of mine when we were riding through that same place one October night hard upon twenty years ago. His Satanic Majesty had a hand in that job, if ever he had in anything.’

‘Spin us your yarn, old chap!’ shouted a dozen voices; and passing the word for a fresh supply of whisky, they gathered closer round the log-fire, filled their pipes, and prepared to listen with the keen interest of men who lead an isolated and monotonous life far from the stir and life of big cities, and are therefore ever ready and eager to hail the smallest incident with pleasure; while a good story-teller is regarded with universal respect. Rattlesnake Gulch was at that period a comparatively new Claim, on the very outskirts of civilisation, and news from the cities was long in reaching the denizens of this locality.

‘What I am now going to tell you, boys, has never crossed my lips from that day to this, and most likely never would, if I hadn’t chanced to come along just now as Jack was speaking about the body those navvies found in the Devil’s Panniken.’

Being politely requested by his hearers to ‘Shell it out!’ Old Grizzly continued: ‘Whether you believe what I’m going to say is no matter now. I believe it, though I can’t understand how it all came about. Well, as I said before, the time was hard on twenty years ago, and the night was the last in October.’

‘Bedad, and it’s that same night now!’ put in Murphy.

‘So it is!’ acquiesced Old Grizzly; ‘but I never thought of it till this minute; and now the whole thing comes round again on All-Halloween, of all nights in the year. Those of you boys who’ve been raised in the old country will know what folks believe, in most villages and country places, of Halloween, and the strange things that happen then to men abroad at midnight, and to lads and lasses who try the Halloween spells for wives and husbands.’

‘Sure everybody knows them things,’ agreed Murphy, casting an uneasy glance over his shoulder as he spoke.

‘Well, true or false, I for one thought little enough of them when I was young; but as luck or fate would have it, I rode through the Devil’s Panniken on the 31st of October, that special night I’m going to tell you of. I wasn’t alone either; perhaps, if I had been, I shouldn’t have felt so jolly; for, not to speak of the loneliness of the place, with its great black rocks towering up on either side of you, and almost shutting out the sky, except

for a narrow strip overhead, the place had an ill name both with the Injuns and with miners. Many a queer tale was told round camp-fires, and folks said the place was haunted; that miners had lost their way there many a time, and had never been seen or heard of again.

‘I’d been working all that season at a Claim—a new un then, but worked out and forgotten now—which we used to call Cherokee Dick’s, because a Cherokee Injun first showed us the place. There was perhaps a dozen of us all told; but I chummed and worked from the first along with a chap they called the “Flying Dutchman.” When we had been together a goodish bit, he told me his real name was Cornelius Vermudyn; and I acquainted him with mine and where I hailed from. He was a Dutchman, sure enough, but had travelled half over the world, I used to think from his talk; and he could speak as good English as you or me—or any here.’

A dubious smile hovered for an instant on Gentleman Jack’s lips at this naïve statement, but nobody observed him; they were all intent on Old Grizzly and his yarn, and that worthy continued: ‘We began to find our Claim about cleaned out, and we—that’s me and Vermudyn—reckoned to make tracks before the winter, and get down ’Frisco-way. Well, we each had a good horse and a nice bit of gold, and we was sworn mates—come what might—so we started, riding as far as we could by day and camping out at night, if we weren’t able to reach a settlement or diggings by nightfall.

‘On this night, it seemed as if we’d no luck from the beginning. We lost our way for a goodish bit, and were some time finding the track again; after that, night seemed to come on us suddenly like. We’d rode and rode that day without ever a sign of man or beast, and when we came to this place, Vermudyn says: “This must be the famous Devil’s Panniken, old boy.” I had been almost falling asleep on my horse’s neck; but I woke with a start, and answered all in a hurry: “Of course it is.” It seemed somehow as if I knew that place well, and I began to ride on quickly.

“Stop!” hollered Vermudyn, “unless you want to lame your horse or break his knees among those rocks.” As he came up with me, he put his hand on my arm, and I drew rein.

“Anyhow,” I said, “let’s get out of this, and then we’ll camp for the night. I’m as tired as a dog, and can hardly stick in my saddle.”

“Why not camp here?” says Vermudyn with a laugh. “Who’s afraid?”

“I’m not—if that’s what you mean,” I answered; “but I’d rather camp outside.”

“A good two miles of bad riding,” said he quietly. “Why shouldn’t we content ourselves with a snug corner of the rocks, where we can shelter from the wind? As far as I can make out, there’s brush and litter enough for a fire, and we’ve got a bait for our horses.”

‘While he talked and argued, I grew more and more tired, exactly as if I had ridden a hundred miles without drawing rein. It seemed then as if I didn’t care what came next, so long as I could roll myself up in my blanket and snooze, so I answered short enough: “Have your own way. The place is ours, I reckon, as much as it is other folk’s.”

“The pixies and demons, you mean,” laughed Vermudyn. “I know all the miners’ tales! Never fear. I dare wager we shall see nothing worse than ourselves, if we stop for a month of Sundays.—Did you ever hear,” he went on, “of the White Witch of the Panniken? She should meet us hereabouts, if all tales be true. She waits for lonely travellers, and shows them gold in the rock where gold never was in daylight; and if a man is tempted, for the gold’s sake or hers, to spend the night with her, he’s never seen or heard of in this world again. She feasts him with the sight of big nuggets and her own beauty, while she sucks his heart’s blood like the vampyre; and when his body is drained to the last drop, he is flung aside among the rocks or dropped in some dark gully; and she comes back to watch the road for a fresh prey.”

“I’ve heard of the White Witch many a time; but I never knew the rights of the story until to-night,” said I. “But witch or no witch, we’ll have to stop; the road grows harder, and my horse seems to stumble at every step. It’s so dark, too, I can hardly see my hand before my face; yet it seemed almost daylight when we rode into the gorge.”

“The pair of us will be too many for the White Witch, anyhow,” said Vermudyn. “Too much human society don’t agree with her ghostly constitution.”

‘We had stopped together, and I was just going to get off my horse, when Vermudyn sang out in a hurry: “I see a light!—there to the left. Let’s ride

up. We may find a party forced to camp out like ourselves; or they may be Injuns; and any company is better than none to-night."

"Right enough," says I, rubbing my eyes. "There is a light, and a pretty strong one too; a steady light, mate, and not a Will-o'-the-wisp. I never heard before of white man or Injun daring to camp in the Devil's Panniken."

"Well, we must go up quietly till we can see our company," said my mate. "We don't want to drop on a gang of freebooters, who'll ease us of the dust, and then leave us with a bullet through our heads, as a parting gift."

'After this, we rode forward in silence for what seemed a quarter of a mile; but we went at a foot's pace, on account of picking our way among the rocks that lay thick in the road. Then, as we turned a sharp corner, we saw all at once that the light came not from a camp-fire, but from a house!

"Well," says I, "in all the years I've worked in these parts, man and boy, and tramped from claim to claim, I've never heard that there was hut or shanty in this place."

"Nor I neither," returns Vermudyn; "but perhaps it's a new spec; though what folks could want with a house where there's neither gold to find nor land to farm is more than I can tell. We may thank our luck we've tumbled across it."

'He jumped off his horse as we drew rein at the door of the queerest old house I ever saw. It was a tumble-down sort of a place, half-stone, half-wood; and the woodwork was fast going to decay, though we could see plainly enough that time and money had once been spent over it. The stone was pretty rough; but the house was all pointed gable-ends and queer-shaped long windows. The high-peaked overhanging roof and the diamond panes reminded me of houses I'd seen in England when I was a young un. The pointed gables were faced with carved oak; and heavy oaken beams, black with age, formed the framework of the upper stories; while the spaces between were roughcast with shingle and plaster. The wickedest old faces were grinning and leering at us from the carvings above the windows; and we could see the whole place, every stick and stone about it, as plain as daylight. We had been riding in darkness through the Devil's Panniken, a darkness that grew blacker as we went on; and the light from this house

fairly dazed us at first. Every window flamed as though there were jolly fires in each room, and hundreds of candles. The place seemed all aflame inside and out; the walls were as bright as if the moon was shining her clearest and strongest full on the house; yet,' said Old Grizzly, dropping his voice impressively, 'there was no moon at all that night! We stopped and looked at one another in wonder, and then stared at the house again. We could hear sounds inside now quite plain, men's voices, and women's too. Ugly sounds besides, that I couldn't understand; such howling and shrieking as though all Bedlam were let loose inside—wailing like some creature in pain, and roars of mocking laughter. I turned deadly cold, and shivered as if it were midwinter.

"For mercy's sake, let's get away from this madhouse—if it's not something worse!" said I. "All's not right here; and I'd go afoot all night before I'd rest in that place."

"Nonsense!" returned Vermudyn in his impetuous way. "I'm going in, anyhow; and you'll stop to see fair-play, I know."

'The upshot of it was he seized my arm and led me into the house; while a gipsy-looking fellow came out for our horses, after we'd unloaded our knapsacks and blankets. My gold was sewed in a belt round my body, and I determined to fight hard for dear life, if need be; whilst I was equally determined to see Vermudyn through the night's adventure, as far as it lay in my power.

'If the outside of the house was strange to us, the inside was still stranger. The furniture appeared to be hundreds of years old. The presses, chairs, and tables were all of polished black oak, which reflected the light of many candles; while a big fire roared in the open fireplace, near which a table was laid for supper, and everything on it matched all we'd already seen. There were drinking-horns mounted in silver; cups of the same; such a load of plate as I'd never seen in my life, and such as, I was pretty certain, belonged to no country inn in a wild district where the only travellers were miners, and the only natives Injuns. On the top of a carved press in one corner there was a fine show of bottles—long-necked, slender flasks, crusted over with age and cobwebs; and short squat bottles, that held hollands and Kirschwasser, Vermudyn told me.

‘Well, while we took stock of the room and its contents, there wasn’t a soul to be seen, yet the noise and hubbub continued still all around us; the clatter of a hundred voices rising and falling far and near like the wind. Laughter, screams, and low moans all together, or following each other quickly. The longer I listened, the less I liked it; yet, as I sat in a corner of the big chimney, I seemed to grow drowsy and stupid-like, as if I had no power of my limbs or my voice. I think I couldn’t have walked a dozen steps for a thousand pounds; yet I could still hear and see all, through a light mist that fell betwixt me and everything I looked at.

‘Vermudyn didn’t appear afraid or surprised in the least; and the spell—I can call it nothing else—that was over me had no effect on him. He stood in front of the fire, warming his hands, and looking round him quite gaily, and pleased with all he saw.

“Wake up, mate!” he called to me; “we’ve fallen in luck’s way this time, surely. You’ve no cause to fear. It seems to me that I must have been here a score of times before, I know the place so well; and yet”—he stopped for a minute and put his hand over his eyes—“and yet—it can’t be!—I know it. That press,” he went on, “should hold the green suit.” And stepping across the room, he opened a worm-eaten cupboard in the far corner, and took out a suit of faded green velvet, the cut of which reminded me of old pictures I’d seen at home; and when Vermudyn took them out and looked them over carefully, the whole thing struck me so absurdly, that I began to laugh like a maniac, though still I had no power to speak. I wanted to tell him he would look like a tumbling mountebank at a fair, if he rigged himself out in the velvet suit; but I only laughed and nodded at him silently from the chimney corner, like some drivelling old dotard.

‘However, he didn’t put it on, but, as if struck suddenly by another thought, threw it aside, and opened a cupboard near the fireplace. He smiled again. “I knew it was here,” he said softly, as he returned to the fire, and stooping down, held something to the light. It was a little box of carved ivory, yellow with age, and strangely shaped; but Vermudyn seemed as familiar with it as he was with the rest of the wonders in that house, for he pressed a spring, and the lid flew up, disclosing a sparkling chain made like a snake, with shining scales of beaten gold that glittered in the flickering firelight.

‘While Vermudyn was still looking at its twisted coils and muttering to himself, the door opened, and a troop of figures crowded into the room.’

## IS THE SEASHORE FREE TO ALL?

To the ordinary visitor to the seacoast this question may seem unnecessary. To him it probably appears, if he ever gives the matter a thought, that the shore is free and open to everybody; and that no one person really has any more rights over it than another. If he were told that he was no more entitled to walk or be driven across the beach for the purpose of obtaining his morning dip in the sea than he was to cross the park of a private gentleman and bathe in his lake without permission, he would probably refuse all credence to the statement. If he were further told that when he picked up a shell off the sands and walked away with it, he was guilty of an unlawful act, his mental attitude would most likely be one of indignation, and in most cases his belief in his own indisputable right to be where he was, and to enjoy himself as seemed best to him, provided that he did not interfere with the comfort of his neighbours, would be in no way shaken.

It is the object of what follows to show how little ground there is for this belief. To begin with, a brief definition of the shore will be useful. Strictly speaking, it is that portion of the land adjacent to the sea which is alternately covered and uncovered by the ordinary flow and ebb of the tides. The fringe of rock, sand, or shingle, which is to be found on most parts of the English coast, and which is never under water except at the highest spring-tides, does not form a part of the 'shore,' though it is commonly spoken of as such; and the law only recognises as shore that portion of the coast which lies between the ordinary high and low water marks. All that portion of it which lies nearer to the land than the ordinary high-water mark is part of the *terra firma*, and, as such, is subject to the usual rights of ownership. This technical 'shore' throughout the coasts of England belongs, except as is mentioned afterwards, to the Crown. As is well known, the theory of the law is that the whole soil of England belonged originally to the sovereign, by whom it has, in process of time, been almost entirely granted to subjects. Some of our sovereigns have also occasionally exercised their rights of ownership in the seashore by making grants of it, in company with the adjoining *terra firma*; so that there are cases in which the shore, as well as the adjacent *terra firma*, is subject to private ownership.

So much by way of definition and explanation. Let us now briefly consider what rights the ordinary subject has to the use and enjoyment of the seashore. We will begin by considering his right to use it as a means of access to the sea for the purpose of bathing. The first time this question was raised in a court of justice in England was in the case of *Blundell against Caterall*, which was tried in the year 1821. If the reader will look at a map of England, he will find marked on the coast of Lancashire, a few miles north of Liverpool, the town of Great Crosby. In the year 1815 an hotel was built there. Before that time, people who lived at Great Crosby had bathed on the beach, but they had done so in a simple and primitive manner; they undressed themselves in some convenient spot, and then walked over the sands into the sea. When the hotel was built, the proprietor thought that it would be for the comfort of his guests and his own profit if a more convenient means of bathing were provided; and so he had built a number of 'machines' of the well-known type. *Caterall* was one of the hotel proprietor's servants, and was employed by him to drive these machines into the sea. The plaintiff, Mr *Blundell*, was lord of the manor of Great Crosby, and he claimed that the shore there had been specially granted to him, and formed part of his manor. This grant of the shore was not proved, but it was not questioned by the counsel who appeared for *Caterall*, and so was taken for granted. The contention of *Caterall's* counsel was what would probably be in accordance with the views of most people on the subject. He argued that there was a common-law right for all the king's subjects to bathe on the seashore, and to pass over it for that purpose on foot or with horses and carriages.

The case was fully discussed and long judgments were delivered by the four judges before whom it was tried. The result was that it was decided by three judges against one that no such general right in the subject to frequent the shore for the purpose of bathing existed, whether on foot or in carriages. The dissenting judge, who seems to have taken a broad and common-sense view of the matter, based his judgment on the general grounds of the sea being the great highway of the world; of the importance of a free access to it; and of the necessity of a right to bathe in it, as essential to the health of so many persons. 'It was clear,' he said, 'that persons had bathed in the sea from the earliest times, and that they had been accustomed to walk or ride on the sands.... The shore of the sea is admitted to have been at one time the property of the king, and from the general nature of the property, it could

never be used for exclusive occupation. It was holden by the king, like the sea and highways, for all his subjects.' Unfortunately for the subjects, however, the other three judges, and consequently the majority of the court, were convinced by the arguments of the counsel who opposed the claim to the right of bathing. This opposition was based on three grounds. 'First,' said Mr Blundell's counsel, 'there is no evidence to be found in any of the legal authorities for the existence of any such right; they are completely silent upon the matter. Secondly, such a right is contrary to analogies. Thirdly, such a right is contrary to acknowledged and established rights.'

The first and third of these arguments seem to have chiefly influenced the judges in coming to their decision. This decision, which must be taken as ruling the matter, up to the present time at anyrate, declares, as has been stated, that the subject has no right to pass over the shore for the purpose of bathing. The actual right to bathe in the sea does not seem to have been disputed; what was settled was, that a man has no right to pass over the shore in order to reach the sea. If any one chooses to take ship from Ireland to within a few yards of the Lancashire coast, and then bathe from the deck, there is nothing in the decision in the case of Blundell against Caterall to show that he would in any way be going beyond his strict legal rights. Such a course would, however, be inconvenient—and decidedly expensive.

Of course, when the shore remains undisputedly in the possession of the Crown, no interference with the subject's privilege of bathing, under fitting conditions, is to be apprehended. The decision in *Blundell v. Caterall*, however, shows that where a portion of the shore has been made the subject of a grant, there is nothing to hinder the person in whose favour the grant has been made from entirely preventing it from being used for the purpose of bathing, or from allowing it to be so used only on payment of any tax he may choose to demand. It is scarcely necessary to say that no such claim on the part of a private subject to such property in the shore, carrying with it, as it does, the right to tax, or even prevent altogether, sea-bathing, should be allowed without the strictest possible examination of it. Whether a man is possessed of the shore will entirely depend upon the exact words used to describe the boundaries of the land granted to him. If the deed of grant describes the land to be granted 'down to the sea,' or if any similar words be used, such grant would not include the shore; for it, as we have said, is what lies between high-water and low-water marks; and 'down to the sea' would

be taken to mean down to the ordinary high-water mark, and so would just fall short of the 'shore.' If, on the other hand, it should be distinctly stated that the land is granted down to low-water mark, or to any definite distance out to sea, which would include the low-water mark, then undoubtedly the shore, with its attached rights, has been granted. Because it has been held judicially that the subject has no right to use the shore as a means of access to the sea for the purpose of bathing, it must not, however, be inferred that he has no right to be there at all. From time immemorial it has been recognised that the ownership by the Crown of the sea-shore is limited by a common-law right on the part of the subject to pass over it to reach the sea, for the purposes of fishing and navigation; and as the Crown cannot transfer to other persons more than it possesses itself, these rights of the general public still exist when the shore has passed into private hands.

The right of bathing is not the only right which most people are apt to take for granted which has been disputed, and disputed successfully, in the courts. How many people know that when they pick up a shell or a piece of seaweed and take it home with them, they are rendering themselves liable to an action? Yet it is so, as what follows will show. In the year 1801, one Bagott was the owner of a certain manor in the parish of Keysham, and this manor included—or at anyrate, Bagott claimed that it did, and his claim was not disputed—a portion of the seashore. In cases such as those here cited, there seems to have been far too great readiness to admit claims to the shore. It appears that on this part of the coast shellfish were found in great numbers, and it was the custom of the people in the neighbourhood to take them for the purpose of selling them, or using them as food. Amongst those who did so was a man called Orr. He employed other men to help him, and took away great quantities of the shellfish in carts, and seems, by the magnitude of his operations, to have exhausted Bagott's patience. At anyrate, Bagott commenced an action against him, alleging that he (Orr) had entered certain closes of his (Bagott's) 'lying between the flux and reflux of the tides of the sea, in the plaintiff's manor of Keysham, and the said shellfish and fish-shells there found, caught, took, and carried away, and converted, and disposed thereof, when the said closes were left dry and were not covered with water.' To this Orr urged in defence, that what the plaintiff called his closes were, as a matter of fact, rocks and sand of the sea, lying within the flux and reflux of the tides of the sea, and that the shellfish and fish-shells which he had taken away were 'certain shellfish

and fish-shells which were in and upon the said rocks and sands of the sea, and which were, by the ebbing of the tides of the sea, left there in and upon the said closes; and that every subject of this realm of right had the liberty and privilege of getting, taking, and carrying away the shellfish and fish-shells left by the said ebbing of the sea.’ The judgment of the court, as it appears in the Report of the trial, gives none of the reasons upon which it was founded, but merely declares in the baldest manner possible that the defendant had a right to take the *shellfish*; but that, as no authority had been brought forward to support his claim to take *shells*, the court would pause before establishing a general right of that kind!

Of course, this judgment cannot be taken quite literally, for the shellfish cannot be taken unless their shells are taken also. What it must be understood to lay down is this, that we may take the shells so long as they are attached to, and form, as it were, part of the living fish; but that we must not take a shell when it has become detached from its inmate, and is nothing more than a shell. This prohibition to take empty shells is really equivalent to a prohibition to take not shells only, but also sand or pebbles, or indeed any other part of the soil of the shore. It may be added here, by way of parenthesis, that, by an Act of Parliament passed in 1620, a special privilege is granted to all persons living in the counties of Devon and Cornwall ‘to fetch and take sea-sand at all places under the full sea-mark.’ Why this privilege was specially granted to the inhabitants of these two counties is not at all clear. At anyrate, the passing of the Act shows that the right did not previously exist.

The last case to which we shall refer is that of *Howe against Stowell*. It was tried in the year 1833. Here, as in the case of *Bagott against Orr*, the plaintiff was the owner of a portion of the shore, upon which, at different times, the sea cast up great quantities of seaweed. The farmers in the neighbourhood were in the habit of carting this seaweed away, using it for the purpose of manuring their land. Stowell had taken some, and Howe brought an action against him. Stowell urged that, as a subject of the king, he had full and perfect liberty to go upon the shore and take the seaweed, which had been left there by the reflux of the tide. The court, however, found that no such right as Stowell claimed existed. Their judgment to some extent supplements and explains the one delivered in the case of *Bagott v. Orr*. The court referred to that case, and said that the taking of fish was for

the immediate sustentation of man—a reason which did not apply to the taking of seaweed. Whatever the reasons may have been which caused the court to make a distinction between the fish and their shells, the distinction certainly now exists; and while it is unlawful to take away from the shore any shells, sand, pebbles, or seaweed, it is perfectly lawful to carry away any shellfish that may be found there.

Here we may leave the subject. Sufficient has been said to show the reader how much of the liberty of doing what he likes on the seashore is entirely due to the goodwill of such as have the power, if they choose to use it, of very seriously curtailing that liberty. Happily, by far the greater portion of our shore is still the property of the Crown, which is never likely to enforce its strict rights to the curtailing of the reasonable liberty of the subject. These rights might, however, with general advantage, be much more strictly enforced than they are on some parts of our coasts, where sand, pebbles, and stones are being constantly carted away in large quantities, to the detriment of the beach and adjacent land.

## A NAMELESS ROMANCE.

I HAVE a leisure hour to spend now and then, and I spend it in rambling round the city where I dwell. Perhaps some of you may think this is poor enjoyment, but it does not seem so to me. True, were I young and rich, I might seek my pleasures farther afield—on the sunny shores of the Mediterranean, or in the gay gardens of France. I might bask more in the smile of gentle dames, forgetting my loneliness, as one forgets in the sunshine that only a moment before the sky hung black with clouds. But I am neither young nor rich; and even if I were, it seems to me that no place in the world could ever be so dear as those lanes and meadows I love so well.

Yes; I am old now, and chilly sometimes at night when the fire gets low, wearing a greatcoat even on the summer days, and shivering often when the zephyrs fan my face. But I am kept young by my love for nature; I woo her as amorously as ever maid was wooed by swain, and she is not afraid to press her rosy lips to mine, yellow and withered as they are, and to twine her lovely arms round my neck. I love her for her hopefulness, for her inexhaustible store of youth. Everywhere with love she rebukes poor mortals for sitting down sad with folded hands, and with a glad voice bids them be up and doing. She is irrepressible. You may crush her down with stony hand and plaster over every vestige of her beauty, and then say to yourself, in pride of heart, ‘I have made a city, a place for commerce and traffic, and pleasure and sorrow;’ and yet, turn your back for an instant, lo! a little blade of grass comes up between the stones of the causeway and laughs in your very face. We may build our houses up story upon story, with the dingy attic at the top, for women’s hearts to break in, and the squalid court beneath in which little children may get their first taint of sin; but a gleam of sunshine will day after day work its way down to the very centre of the filth and squalidness, and a rose will bud and bloom in some poor man’s window, blushing back with pleasure into the face of its kindly keeper.

Then think how charitable she is, how slow to return an insult, how cheerfully she bears an affront. I often think—though, of course, it is but the vagary of an old dreamer—that those who build up masses of brick and mortar would be well repaid if nature left a sterile belt round their work, a belt gray and cold as their own walls. But no! She takes no such revenge as this. Long before the city-smoke has mingled with the clouds, or the hum of city-life died away, we come on patches of green, smiling us a welcome; on trees, too, sprouting forth in beauty, or draped with leaves and flowers, nodding to us in a grave and stately way, as if to show that they at least bear no grudge, and are prepared to be friendly in spite of all rebuffs. Ruminating thus, many a lesson have I learned on charity and forgiveness.

Nor are my rambles unromantic, though the scenes are no longer strange. Every house and farm has become familiar to me. I have seen a generation or two of cowboys develop into ploughmen, wed themselves to rosy dairymaids, and go their ways. I have beguiled idle hours in weaving webs of fancy round their married lives, listening for the merry laughter of children in their cottages, and watching for the glad light of love on many a mother's face. And as with men and women, so with things. The old castle with its turreted walls and secret passages has furnished me much food for thought. I have recalled in fancy the noble men and fair women who used to tread its halls, their courtly, gallant ways, their feasts and tournaments; and, as I stand in the chambers, girt with gray stone and canopied by heaven, I can see the coats of mail still on the walls, and hear through the mist of years the voice of some gay warrior recounting his triumphs in the field. And many a story, too, have I heard from the rustic people about the old gray house which stands in the hollow among the trees. You see, I am old enough to pat the comely maidens on the shoulder without exciting the ire of their brawny lovers, and to chat, too, with impunity to the buxom matrons in the cottages while their husbands sit smoking by the fireside. And thus it was I heard the story of the Old House in the Hollow. I had often wondered if it did contain a secret, so silent was it, so forbidding in aspect, with its old porch black with age, and its windows stained and weather-beaten. It looked so grim, that I used to think it, too, must have witnessed deeds of blood, and taken the best way to avoid detection by standing for evermore in gloomy silence. It stood among thick foliage, so thick, that even on a summer day but a stray sunbeam or two rested on its blackened walls, wavering and timorous, as if scared at their bravery in

venturing so far. The carriage-road from the gate to the door had faded out of sight, and there was nothing around but grass, heavy and dark-coloured, with the weeds that grew among it. The woman in the cottage not far off was glad enough to give me the key of the rusty iron gate which admitted to the grounds, and there I used to wander, more from curiosity than pleasure. But I always felt morbid under the old trees; and the grass, too, was so thick and rank, that it was like walking over deserted graves.

In that old garden, said the villagers, a lady in a white mantle used to walk among the trees, and look with yearning glance towards the windows of the old house. There I have waited for her, but she never came; for, through habit, I have fallen into believing the stories I hear. Perhaps the sunshine frightened her away; perhaps, from long living in the shades, her eyes had grown too weak to bear the light; perhaps she cared not that strangers should share her grief, and wished to mourn there alone, with the darkness for her friend, and the winds sighing comfort to her among the trees. Whatever the reason was, I never met her face to face in that gloomy hollow. Yet, although she was so fair and young, the older villagers could not tell her tale without a shudder; and though the lads and lasses laughed aloud, yet it was a wavering, uncertain laugh, which died on their lips, and left a silence all the more profound.

Forty years had passed since the oaken door creaked on its hinges to admit the master and his fair young bride; and a year later, it had closed on her as they bore her away to sleep in the churchyard, to the grave that had proved too small for her wandering, restless spirit. On that day, cold, and with a drizzling, chilling rain, the small cortège passed through the gate, a man walking behind, with head bent and eyes cast on the ground, his face calm, but chill and gray as the sky. And if the curious one had turned his eyes on the house, he would have seen, at an upper window, a woman's figure, clad in mourning, with head bent, intently watching the pallbearers as they wound along the muddy road. Had the curious one cared to look closer, he might have seen the gleam of triumph in her eyes—dark, flashing, coal-black eyes—as she watched the tall bent figure walk behind with such a weary, listless step. But soon a turn in the road hid the company from view, and the window was empty again.

One year had sufficed to darken the brightness of that fair young life. Did it ever strike you, reader, that some men and women seem to have had a

sunlight bath before entering this world, so destined are they to make everything around them pure and good; while others, wafted from the regions of gloom, cast all around them the shadow of death? Into this baleful darkness had the young bride fallen, and in it her spirit had been quenched. She loved her husband truly, that tall, bronzed man, who had come from the Indies to woo her in the sunny lanes of her own England. Right glad, too, had she been to become mistress of his old home. For months, no spot had come on their home-picture. He was happy in his treasure; she, too, in her simple life in the village, where, from her kindness, she already was receiving the homage due to a queen. But one day, when the snow was on the ground and the flowers were dead, a woman came to the Old House in the Hollow. She was dark, and radiantly beautiful, with the beauty that blossoms under western skies. She neither asked nor received leave to stay as a member of the family circle in the old house, but there was no one to oppose her action. The master was her cousin, she said; and even as she spoke, the gleam in her eyes gave her words the lie. Yet he said nothing, for suddenly he had grown silent and cold, avoiding even the wistful, questioning glances of his wife.

The shadow spread slowly over the house, up the staircases, into the nooks and corners of the rooms, laying its black hand now on this and now on that, but nowhere so strongly as on the heart of the young mistress. Her rippling laughter changed to sighs, her bright smiles were replaced by downcast looks; she passed from summer to winter with no mellowing autumn days to make the change less sad. It was not that the woman, who had come so strangely, sought the love of her husband, or in any other way attempted to dispel the sunshine of her life; she simply dwelt with them, nay, was friendly enough at times; but the dark dress which she wore, and the masses of dark hair which at times she would let fall about her shoulders, seemed indicative of the moral cloud which was slowly gathering over their lives. The lily drooped day by day for want of sunlight. She became morbid, nervous, full of strange and wayward fancies. She thought the love of her husband was dead; and she took to dressing herself in her wedding garb, to try if by that strange way she might make it live again. Clad in the soft, lustrous satins—in which as a happy bride she had blushed and smiled in the little English church but a few months before—she would pace her room for hours, and stand, too, longingly before the glass, peering wistfully to see if aught of her charm were gone. In this garb,

too, she would walk among the old trees, and deck her bosom with the snowdrops of spring; but they seemed to wither away at her touch and hang listless and dead. Thus it was, one day she was found sitting among the trees on the fresh spring grass, some faded snowdrops in her lifeless hand, her golden hair surmounting a face darkened with some mysterious presence. A pale gleam of spring sunlight had crept down and settled on her brow; but it was out of place, and timid as the sunbeams which I have seen playing on the old house itself.

Thus quietly as the gliding of a river did her spirit depart, or rather was effaced, as a cloud can hide the silver moon from us for a time. And so, they tell me, she can be seen at times in the old garden, just as, when the clouds grow faint, the welcome shafts of light come down to assure us that their mother orb still lives.

# QUARANTINE.

BY AN EXAMINING OFFICER.

AT a time when every one has been anxiously perusing the daily accounts of the increase or abatement of cholera in European towns, and when there exists a lurking fear lest the dreaded scourge should obtain a footing on our shores, a brief description of the precautions taken against such a visitation may possibly prove interesting to your readers. The majority of people have, of course, a hazy idea that vessels from Southern France are not allowed to slip in and out of the United Kingdom without strict examination as to the possibility of cholera or other disease existing on board. They know that there is some action taken bearing the old-fashioned title of 'Quarantine,' and that it relates to the isolation of vessels on board which disease may exist; but with this knowledge, in a majority of instances their information ends. This very haziness thus induces unfounded fear—and fear supplies one of the chief ingredients on which cholera may be most bountifully fed. If I can in any way lessen this apprehension by detailing, as briefly as possible, the close supervision to which vessels from foreign ports—just now from the south of France especially—are subjected, the purpose of this article will be fully realised.

'Quarantine,' according to the lexicographers, 'is the term during which a ship arriving in port, and suspected of being infected with a malignant, contagious disease, is obliged to forbear all intercourse with the shore.' Thus a ship arriving in the United Kingdom at the present time, and having on board, or suspected of having on board, a case of cholera, would be at once cut off from all intercourse with the shore or with any neighbouring vessel. This 'cutting-off' process was in olden times much more cumbrously managed than at present. Then, the quarantine stations round the shores of Great Britain were not only numerous, but were themselves a source of danger to all concerned. Now, the only one of the old quarantine stations of the United Kingdom is that of the Mother-bank, in the Isle of Wight, where are located three unemployed men-of-war, having on board a staff of officers and men with all appliances necessary for dealing with

vessels placed in quarantine. These vessels, I understand, have only been called into requisition on twelve occasions during the last twenty years. The place for the performance of quarantine at any port is now generally decided by the Local Authority of that port in conjunction with the officers of Customs who may be stationed there. Her Majesty's Privy Council are, of course, primarily responsible for the due carrying out of the quarantine regulations; but on the officers of Customs depends the detention of any vessel, pending the decision of the higher authorities regarding such detention. To enable the officer of Customs to act with authority in the matter, he is provided with a 'Quarantine Commission,' on the faith of which he can detain any vessel arriving from abroad on board of which he may suspect the existence of cholera or other infectious disease.

I will suppose, now, a vessel arriving in the Mersey, the Thames, the Tyne, or other busy shipping centre. The vessel, with her national ensign flying aft, to denote that she is from a foreign port—let us suppose a port infected with cholera—sails or steams up to a position some distance from the shore, termed the 'boarding station.' Here the master must 'bring to' under a penalty of one hundred pounds. The Customs officers come alongside in their boat; and before any one goes on board, the following questions are put to the master: 'What is the name of the vessel and of the master? From what port have you come? Was there any sickness at the port while you were lying there or at the time you left it? Have you any Bill of Health?—if so, produce it. What number of officers, crew, and passengers have you on board? Have any of them suffered from any kind of illness during the voyage?—if so, state it, however trifling it may have been. Is every person on board in good health at this moment?' Should the master refuse to answer any of these questions, or give a false answer to any of them, the refusal or falsehood subjects him to a penalty of one hundred pounds; and if the questions have been put upon oath and he returns a false answer, he is liable to punishment for wilful and corrupt perjury.

Should the answers of the master be deemed unsatisfactory, and should the officer of Customs suspect the existence of cholera on board, he at once detains the vessel and apprises the Local Authority, in order that its medical officer may inspect the vessel, and decide whether or not the suspicions of the officer of Customs are well founded. If, however, the Local Authority *fails to have such inspection carried out within twelve hours*—and local

Sanitary Boards would do well to bear this fact in mind—the officer of Customs *does not possess the power to detain the vessel longer*, but must, on the expiration of the said twelve hours, release the vessel from detention. Thus it becomes of the utmost importance that, for the safety of the community, local sanitary authorities should see that the medical inspection is carried out with all despatch.

The inspection being completed, and cholera, we will suppose, being found to exist, the vessel is obliged to proceed at once to the quarantine station selected. Every person on board must remain there until the vessel is released. Should any one choose to disobey the law and endeavour to escape, he or she incurs a heavy money penalty, with the alternative of six months' imprisonment. This is mild punishment, indeed, to that inflicted in the days of our forefathers, when disobedience to quarantine laws subjected the offender 'to suffer death without benefit of clergy.' Still, it is heavy enough to discourage any attempt at disobedience, when such disobedience would bring upon the transgressor the full rigour of the law. Compared with quarantine punishments in other countries, our penalty is, nevertheless, in my opinion, far too lenient. I have known of sailors in the Mediterranean who had left their vessel after she had been placed in quarantine, narrowly escaping being shot dead on the spot. This 'speedy despatch' would not, of course, be altogether in accord with our British system of punishment; yet I can conceive no greater crime than that of risking the propagation of disease in a locality which till then had been free from it. Nothing short of a lengthened period of imprisonment is adequate punishment for a crime so heinous.

To leave the particular case of cholera-infected vessels, it may be advisable to have a last word on foreign arrivals generally. In the questions noted above which are put to the master of a vessel on arrival in the United Kingdom, there occurs the query, 'Have you any Bill of Health?' Most people will probably be inclined to inquire what a Bill of Health consists of. Bills of Health are of two classes—namely, clean bills of health and foul bills of health. The former is a document signed by a British consul abroad testifying that there was no disease on board the vessel, or at the port at which the vessel loaded her cargo for the homeward voyage. The latter is a similar document testifying that there has been disease on board, or at the port of lading, or at any of the ports at which the vessel may have touched

on her way home. A clean Bill of Health, issued at Gibraltar a fortnight ago, lies before me as I write, and thereon it is certified in unmistakable English that 'good health is enjoyed in the city and garrison of Gibraltar, and that there does not exist therein plague, Asiatic cholera, or yellow fever; as witness the seal of the said city and garrison hereupon engraved.' A vessel possessing a testimony similar to this is, generally speaking, free from the trouble and annoyance of quarantine; but were the Bill of Health a foul one, the case would be widely different. With the latter on board, the display of the dreaded yellow flag with the black ball in the centre at the main topmast head makes quarantine almost a foregone conclusion.

To narrate the numerous other duties of shipmasters, of pilots, and of passengers in connection with vessels liable to quarantine, is scarcely possible within the limits of the present paper. Their duties, indeed, would be understood only by the initiated; and an attempt at a popular translation of very dry and wordy regulations would be utterly frustrated by the introduction of uninteresting technicalities. In conclusion, let me ask readers to reflect that not a single vessel comes near our shores that is not thoroughly investigated with regard to the existence of infectious disease, and, by such reflection, to banish those unwholesome fears which do more than anything else to foster cholera or any similar scourge.

## ON THE COAST.

A LONELY strip of coast where golden sands  
Stretch dreamily into the far-off blue;  
A drowsy wind, the breath of southern lands,  
And seas of opal hue.

A glorious, wide expanse of heaven o'erhead,  
Whose tender blue is flecked with clouds of light;  
A fleet of boats, with dusky sails outspread,  
Fast dropping out of sight.

Tall, beetling cliffs that purple shadows throw  
Athwart still pools where ocean treasures hide;  
Low undertones—which ever clearer grow—  
From the in-coming tide.

A perfect peace! Here never comes the strife  
That ever waits upon the race for gold;  
Here in still grooves goes on the march of life,  
With simple joys untold.

Here sweet desire would have me always stay—  
Far from the city's toil, its passions strong—  
And in contentment live through life's brief day,  
Unto its evensong.

But Duty, ever jealous, cries 'Not yet!  
Thy place is still upon the busy mart;  
Thou must go forth, and earn with labour's sweat,  
The wishes of thy heart.'

And so, at Duty's call, do I depart,  
And leave these joys regretfully behind;  
But as a vision bright, within my heart,

Their beauty is enshrined.

CHARLES H. BARSTOW.

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**FOOTNOTES:**

[1] See also the article on '[Quarantine](#)' in the present sheet.

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